BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **PETITIONER'S REQUEST FOR JUDICIAL NOTICE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m. Reservation No. 958052306492 Action filed May 29, 2026

PETITIONER'S REQUEST FOR JUDICIAL NOTICE

TO RESPONDENTS CALIFORNIA HIGHWAY PATROL AND G. SERRATO, AND TO COUNSEL OF RECORD:

Petitioner Brendan Ngehsi Newanforbi requests that the Court take judicial notice, under Evidence Code sections 452, subdivisions (c) and (d), and 453, of the following records in support of the concurrently filed motion for a peremptory writ of mandate. Petitioner has supplied sufficient information to enable the Court to take notice. Copies are lodged as Exhibits RJN-1 through RJN-4, or are already on file in this action as identified below.

Notice is requested of each document's existence, date, official text, and (where

applicable) filing or issuance. Petitioner does not ask the Court to accept as true any disputed narrative fact that a document happens to recite.

I. Court records (Evid. Code, § 452, subd. (d))

Exhibit RJN-1. Order Sustaining Demurrer in Part, *Newanforbi v. California Highway Patrol*, No. 26CV191136 (Alameda Super. Ct. Aug. 29, 2026) (Hon. Jenna M. Whitman). This is a record of this Court. Petitioner asks notice of the order's existence, date, text, and dispositions: Count 1 overruled; Counts 2 and 3 sustained without leave; Count 4 sustained with leave. The order's recital of petition allegations and its citation of *People v. Thompson*, *People v. Wolterman*, and *Espinoza v. Shiomoto* are noticed as the Court's own words at the pleading stage, not as findings that probable cause existed.

Exhibit RJN-2. Order granting in forma pauperis status and screening the complaint under 28 U.S.C. § 1915, *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK (N.D. Cal. June 29, 2026) Dkt. 5 (Magistrate Judge Ajay S. Krishnan). This is a record of a court of the United States. Petitioner asks notice of the order's existence, filing date, case number, text, and screening disposition. The order states, on page 4: "Accepting Mr. Newanforbi's alleged facts as true, his complaint supports the plausible inferences that CHP officers falsely imprisoned him in November 2024 based on fabricated evidence. It also supports the plausible inference that, despite his status as a victim of the qualifying crime of false imprisonment, Defendant Serrato retaliated against him by wrongfully denying his certification request." Petitioner does not offer that language as a finding that fabrication, false imprisonment, or retaliation occurred, or as issue preclusion, claim preclusion, or a federal command to certify.

II. Official acts of a state executive agency (Evid. Code, § 452, subd. (c))

Exhibit RJN-3. Letter of Captain G. Serrato, Commander, California Highway Patrol Dublin Area, dated April 20, 2026, File No. 390.18437.17620.26-050, already on file as Petition Exhibit 1. This is an official written act of a state officer on agency letterhead. Petitioner asks notice of issuance, date, file number, and the stated grounds of denial. The operative paragraph, as quoted in the verified petition and in this Court's August 29 order, states that a "thorough review of this incident was conducted," that the incident "does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code, nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii)," and that the review "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC." Notice is not requested of the truth of that characterization of the November 1, 2024 incident. The standalone letter body is image-only in ordinary text extraction; the quotation is taken from Petition paragraph 60 and the August 29 order, page 2. [PINPOINT UNCONFIRMED on the image-only letter body.]

Exhibit RJN-4. "Dublin CHP -- 01991 -- Detention Certificate" dated November 5, 2024, already on file as Petition Exhibit 7, and admitted as issued in Respondents' Verified Answer paragraphs 42 and 49. This is an official act of the arresting agency under Penal Code sections 849.5 and 851.6. Petitioner asks notice of issuance, the November 5, 2024 date stated in the Answer, and the certificate's classification of the November 1 custody as a detention quoting those statutes. Petitioner does not ask the Court to treat the certificate as a judicial finding that the arrest lacked probable cause, or to adopt advocacy phrases that do not appear on the certificate page. The copy footer's "prepared May 12, 2025" date, if it appears on the lodged page, is a copy-preparation date, not the issuance date. [PINPOINT UNCONFIRMED as to the certificate's exact printed phrases.]

III. What is not requested as judicial notice

Petitioner does not request judicial notice of the truth of CHP Form 202, the laboratory report, the petitioner-prepared transcript, the privilege log, or the October 23, 2026 production cover materials. Those items are lodged with the concurrently filed Notice of Lodging, subject to authentication and any ruling on the scope of the review record.

California and federal statutes and regulations cited in the memorandum (including Penal Code section 679.10, Vehicle Code section 23612, 8 U.S.C. § 1101(a)(15)(U), and 8 C.F.R. § 214.14) are law. They are not attached as exhibits.

IV. Requested order

Petitioner requests that the Court grant this request, take judicial notice of Exhibits RJN-1 through RJN-4 to the extent stated above, and receive those exhibits for the limited purposes identified.

DATED: _____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Propria Persona